

**MAHARASHTRA REAL ESTATE REGULATORY AUTHORITY,
MUMBAI.**

No. MahaRERA/VH/WARRANT/25/11/2021

Date: 29th November 2021.

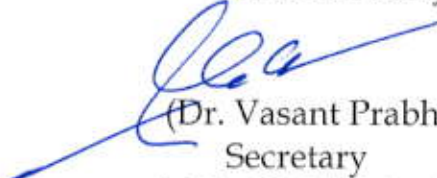
To,
The Collector,
District Collector Office,
Near Hirakot Lake, Tahasil-Alibag,
District-Raigad - 402201

Sub: Execution of the warrant under Section 40(1) of RERA in Complaint No. CC006000000193151 filed by **Manasi Keni** in Project No. P52000007231.

Sir,

I am forwarding the recovery warrant under Section 40(1) of RERA & for its execution. You are requested to look into the matter personally and get the warrant executed at the earliest. On realization of the amount, you are requested to inform us.

Yours faithfully,


(Dr. Vasant Prabhu)
Secretary
MahaRERA, Mumbai.

Encl.: Warrant with
necessary papers.

Details of the attachable assets to be required u/s 17/2 of Maharashtra Realization of Land Revenue Rules 1967. When Revenue Recovery Certificate is under the provision of Revenue Recovery Act 1890.

No. MahaRERA/VH/WARRANT/25/11/2021.

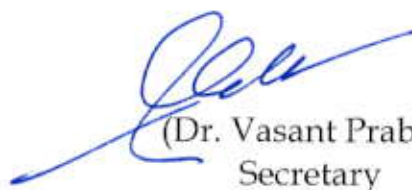
Date: 29th November 2021.

1.	Name and address of the firm: -	Manasi Keni 9, Doorwani CHS, Plot 3, CBD Belapur, Sector 6, Navi Mumbai (M Corp.), District Thane - 400614. Mobile No.- +91- 9082241915 Email ID: - shailesh.keni@gmail.com
2.	The sum to be recovered.	Payment of Interest for delayed possession of Rs. 11,23,599/- calculated on the amount of Rs. 34,60,000/- at the rate of 9% p. a. from 01/03/2018 calculated till 08/10/2021 along with Rs. 20,000/- as cost of the complaint.
3.	The provision of law under which the R.R.C. is sent to recover the sum as in arrears of Land Revenue.	Recovery warrant u/s 40(1) of Real Estate (Regulation and Development) Act, 2016 and Rule 3 of Maharashtra Real Estate (Regulation and Development) (Recovery of Interest, Penalty, Compensation, Fine payable, Forms of Complaints and Appeals, etc.) Rules, 2017.
4.	No. & Date of order under which amount is ordered to be recovered.	Complaint No.: CC006000000193151 Final Order dated: 1st January 2021
5.	Full name and address of the defaulter with name of the building, room no., road name, village name/town, taluka, Dist. Pin Code No.	M/S SHADOW BUILDERS AND DEVELOPERS PVT LTD A WING, 516, 517 & 518, SHIV CHAMBERS, C B D BELAPUR, BELAPUR STATION, Navi Mumbai (M Corp.), District Thane - 400614

		PRASHIK BALASAHEB DHOBALÉ (Authorized Signatory & Contact Person) - PARTNER DIRECTOR PAN No.- BYIPD1666A C - 5/33/3-3, PANCH RATAN CHS, NEAR DPVN SCHOOL, C B D BELAPUR, Navi Mumbai (M Corp.), District Thane - 400614. Mobile No.- +91- 9867083438 Email ID: - vishalkatkar87@gmail.com
6.	Full details of the property of defaulter against which the process may be executed.	The Project known as "APOLLO 2" situated at Plot Bearing No / CTS no / Survey Number/Final Plot no. 59 c, at Kharghar. a) Housing project which is duly registered under the RERA Act bearing Registration No. P52000007231. b) Other apartments which are still not booked and not mortgaged to any Financial Institutions /Bank. Note: Land on which the project is being implemented, apartments that are already booked with other allottees and apartments that are mortgaged to Financial Institutions/Banks should not be attached so that the project can be completed.
7.	Immovable property: a) Name of the building House/Building. b) Room No. c) Name of the village/town d) Road name/gally name	c) If by attaching the property mentioned in 6 above still arrears remain, then the properties/offices or any other movable or immovable properties of the defaulters be attached and auctioned. In order

	e) Sr. No./II No. of the property f) Area of the property in square meters g) CTS No. of the property area of the property.	to ascertain unsold inventory and other properties of defaulters, you may adopt the procedure similar to which laid down under Order 21 Rule 41 CPC - namely to examine the judgement debtor to disclose his property and produce its property card, failing which he can be sent to jail for 3 months.
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Mumbai
Date: 29th November 2021


(Dr. Vasant Prabhu)
Secretary
MahaRERA, Mumbai

**MAHARASHTRA REAL ESTATE REGULATORY AUTHORITY,
MUMBAI.**

No. MahaRERA/VH/WARRANT/25/11/2021.

Date: 29th November 2021.

Recovery Warrant U/s. 40(1) of Real Estate

(Regulation and Development) Act, 2016 and Rule 3 of Maharashtra Real Estate (Regulation and Development) (Recovery of Interest, Penalty, Compensation, Fine payable, Forms of Complaints and Appeal, etc.) Rules, 2017.

Complaint No.: CC006000000193151

Project No: P52000007231

Manasi Keni

--- Complainant.

Versus

M/S SHADOW BUILDERS AND DEVELOPERS PVT LTD --- Respondent.

To,
The Collector,
District Collector Office,
Near Hirakot Lake, Tahasil-Alibag,
District-Raigad - 402201

Whereas the above-named complainant has filed the above complaint No. **CC006000000193151**, and the Authority/Adjudicating Officer passed the enclosed order wherein the respondent was directed to pay simple interest for delayed possession at the rate of 9% p. a. on the consideration amounts paid by the complainants, from the agreed dates of possession till handing over possession of the flats with agreed amenities and occupancy certificate. The respondent was also directed to pay ₹ 20,000/- towards the cost of each complaint.

And whereas the respondent has failed to comply with the order.

And whereas the amount ordered is recoverable from the respondents as an arrears of land revenue by virtue of Section 40(1) of Real Estate (Regulation and Development) Act, 2016 and Rule 3 of Maharashtra Real Estate (Regulation and Development) (Recovery of Interest, Penalty, Compensation, Fine payable, Forms of Complaints and Appeal, etc.) Rules, 2017.

You are hereby directed to recover the ordered amount from the respondent as the arrears of land revenue and pay it to the complainant and report the compliance.

The necessary information is:

1) Name of complainant with his address:

Manasi Keni

9, Doorwani CHS, Plot 3, CBD Belapur, Sector 6, Navi Mumbai (M Corp.), District Thane - 400614.

Mobile No.- +91- 9082241915

Email ID: - shailesh.keni@gmail.com

2) Name of respondents/promoters/directors/partners with their addresses:

M/S SHADOW BUILDERS AND DEVELOPERS PVT LTD

A WING, 516, 517 & 518, SHIV CHAMBERS, C B D BELAPUR, BELAPUR STATION, Navi Mumbai (M Corp.), District Thane - 400614

PRASHIK BALASAHEB DHOBALE (Authorized Signatory & Contact Person) - PARTNER DIRECTOR
PAN No.- BYIPD1666A

C - 5/33/3-3, PANCH RATAN CHS, NEAR DPVN SCHOOL, C B D BELAPUR, Navi Mumbai (M Corp.), District Thane - 400614.

Mobile No.- +91- 9867083438

Email ID: - vishalkatkar87@gmail.com

3. Name of the project & its location:

The Project known as "APOLLO 2" situated at Plot Bearing No / CTS no / Survey Number/Final Plot no. 59 c, at Kharghar.

- a) Housing project which is duly registered under the RERA Act bearing Registration No. P52000007231.

- b) Other apartments which are still not booked and not mortgaged to any Financial Institutions/Bank.

Note: Land on which the project is being implemented, apartments that are already booked with other allottees and apartments that are mortgaged to Financial Institutions/Banks should not be attached so that the project can be completed.

4) Particulars of immovable property and any other movable and immovable property:

- a) If by attaching the property mentioned in 3 above still arrears remain, then the properties/offices or any other movable or immovable properties of the defaulters be attached and auctioned. In order to ascertain unsold inventory and other properties of defaulters, you may adopt the procedure similar to which laid down under Order 21 Rule 41 CPC – namely to examine the judgement debtor to disclose his property and produce its property card, failing which he can be sent to jail for 3 months.

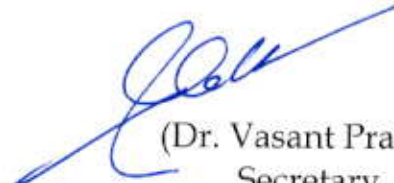
5) Amount to be refunded:

Payment of Interest for delayed possession of Rs. 11,23,599/- calculated on the amount of Rs. 34,60,000/- at the rate of 9% p. a. from 01/03/2018 calculated till 08/10/2021 along with Rs. 20,000/- as cost of the complaint.

6) Enclosures:

- i) Final order dated. 1st January 2021.
ii) Order of Non-compliance dated 8th October 2021.

Mumbai
Date: 29th November 2021


(Dr. Vasant Prabhu)
Secretary
MahaRERA, Mumbai

**BEFORE THE MAHARASHTRA REAL ESTATE REGULATORY
AUTHORITY, MUMBAI
NON-COMPLIANCE APPLICATIONS**

In

1. COMPLAINT NO: CC006000000193147

Mr Vishal Phalke

Mrs Anita Phalke

.... Complainants

Versus

Shadow Builders and Developers Pvt Ltd

.... Respondent

Along With

2. COMPLAINT NO: CC006000000193148

Smita Laxman Survase

Laxman Shamrao Survase

.... Complainants

Versus

Shadow Builders and Developers Pvt Ltd

.... Respondent

Along With

3. COMPLAINT NO: CC006000000193149

Ravindra Vishnu Mojar

.... Complainants

Versus

Shadow Builders and Developers Pvt Ltd

.... Respondent

Along With

4. COMPLAINT NO: CC006000000193150

Sukhadev Virakar

Nanda Virakar

.... Complainants

Versus

Shadow Builders and Developers Pvt Ltd

.... Respondent

Along With

5. COMPLAINT NO: CC006000000193151

Manasi Keni

.... Complainants

Versus

Shadow Builders and Developers Pvt Ltd

.... Respondent

Along With

6. COMPLAINT NO: CC006000000193152

Mansing Deshmukh

.... Complainants

Versus

Shadow Builders and Developers Pvt Ltd

.... Respondent

Along With

7. COMPLAINT NO: CC006000000193153

Rajiv Chand Rajan

Meena Rajiv Rajan

.... Complainants

Versus

Shadow Builders and Developers Pvt Ltd

.... Respondent

Along With

8. COMPLAINT NO: CC006000000193154

Shailesh Damodar Keni

.... Complainants

Versus

Shadow Builders and Developers Pvt Ltd

.... Respondent

Along With

9. COMPLAINT NO: CC006000000193155

Kannan Krishnan Swami

Manashri Dihingia

.... Complainants

Versus

Shadow Builders and Developers Pvt Ltd

.... Respondent

Along With

10. COMPLAINT NO: CC006000000193156

Yogesh Nanabhau Ahire

Nanabhau Fula Ahire

.... Complainants

Versus

Shadow Builders and Developers Pvt Ltd

.... Respondent

Along With

11. COMPLAINT NO: CC006000000193157

Neeta Rajdoot Shinde

.... Complainants

Versus

Shadow Builders and Developers Pvt Ltd

.... Respondent

Along With

12. COMPLAINT NO: CC006000000193158

Shankar Ananda Phanse

Surekha Shankar Phanse

.... Complainants

Versus

Shadow Builders and Developers Pvt Ltd

.... Respondent

MahaRERA Registration. No. P52000007231

Coram: Dr. Vasant Prabhu, Secretary, MahaRERA

Adv. Parth Chande appeared for all the complainants.

None appeared for the respondent.

Order

8th October, 2021

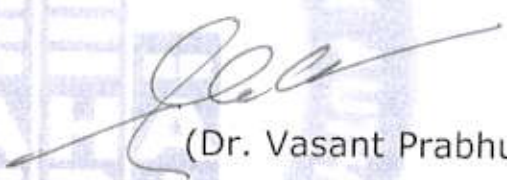
(Through Video Conferencing)

1. The Complainants have filed these present applications for non-compliance of the MahaRERA Orders dated 1st January 2021 in above mentioned Complaints (hereinafter referred to as the said complaints) by the Respondent.

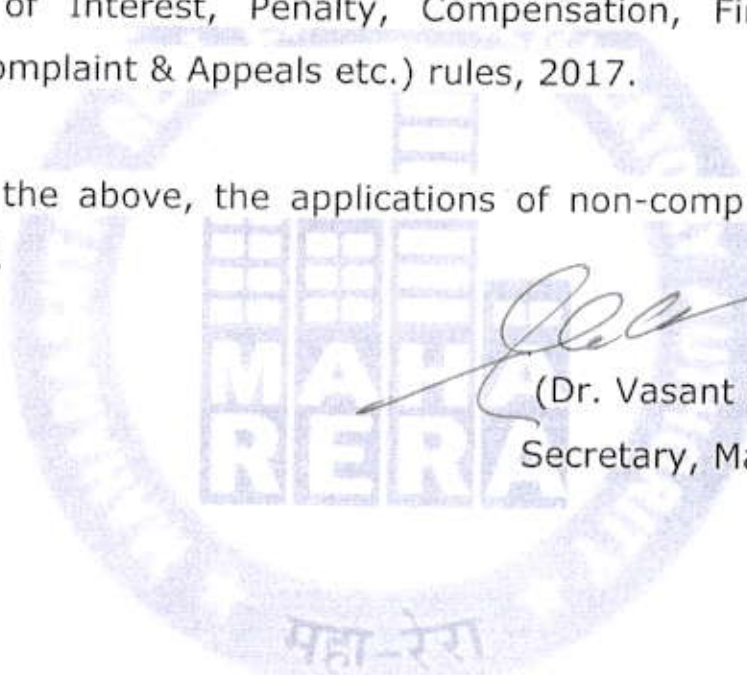
2. In the said complaints, the respondent was directed to pay simple interest for delayed possession at the rate of 9% p. a. on the consideration amounts paid by the complainants, from the agreed dates of possession till handing over possession of the flats with agreed amenities and occupancy certificate. The respondent was also directed to pay ₹ 20,000/- towards the cost of each complaint.
3. On the said non-compliance applications, the hearing was held today through video conferencing as per MahaRERA Circular no. 27/2020 and MahaRERA Order No. 15/2020.
4. During the hearing, the complainants submitted that, the respondent has till date failed to comply with the orders issued by the MahaRERA and has not paid the interest for delayed possession as per the order issued by the MahaRERA. The complainants further submitted that; the respondent did not appear for the hearing even on the last date of hearing. The complainants further submitted that, the date of possession in the agreements was 01/03/2018, however, possession is also not handed over to the complainants till date. The complainants therefore sought action under section 40(1) of RERA against the respondent for recovery of the interest amount payable by the respondent to the complainants. The respondent did not appear even though the notice of hearing was duly served upon it.
5. In view of the above facts, it is clear that, the respondent has delayed the payment of the interest amount which the respondent

was liable to pay as per the order issued by the MahaRERA. Any further time granted to the respondent would lead to injustice to the complainants.

6. Therefore, as per the request of the complainant, the MahaRERA has no alternative but to proceed with action under section 40 (1) of RERA against the respondent. It is therefore directed to issue recovery warrant under section 40(1) of RERA read along with rule 3 of the Maharashtra Real Estate (Regulation & development) (Recovery of Interest, Penalty, Compensation, Fine Payable, Forms of Complaint & Appeals etc.) rules, 2017.
7. In view of the above, the applications of non-compliance stand disposed of.



(Dr. Vasant Prabhu)
Secretary, MahaRERA





Swapnil Utangale <swapnil.maharera@gmail.com>

Statement of Account for Recovery warrant in Complaint no. CC006000000193151

1 message

Legalasst Reraeasy <Legalasst@reraeasy.com>

Fri, Oct 29, 2021 at 12:53 PM

To: "swapnil.maharera@gmail.com" <swapnil.maharera@gmail.com>

Cc: Legal Reraeasy <legal@reraeasy.com>

Sir,

Please find attached herewith Copy of statement of accounts for recovery warrant to be issued in complaint bearing no. CC006000000193151

Thanks & Regards,
Adv. Pooja Thakekar

**Statement of account_Manasi Keni.pdf**

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STATEMENT OF ACCOUNTS FOR RECOVERY WARRANT

Complainant/Applicant Name: Mansi Shekhar Keni

Respondent: M/s Shadow Builders & Developers Pvt Ltd

Project Name: Apollo 2

Project RERA No.: P52000007231

Complaint No: CC006000000193151

Final Order Date: 01/01/2021

The non-execution hearing for the aforesaid matter was scheduled on 08/10/2021 before Hon'ble Secretary Sir, MahaRERA.

During the hearing, Hon'ble Secretary Sir has directed to issue Recovery warrant u/s 40(1) of RERA against the Respondent for non-compliance of Final Order dated 01/01/2021.

The Statement of Account is as follows:

Agreement Value	Amount Paid	Interest Per day calculated @ 9% p.a.	Date of Possession	Date of order of execution warrant	Total Days	Total Interest Due
36,00,000	34,60,000	853	01-03-2018	08-10-2021	1317	11,23,599

Total Amount paid till date: Rs. 34,60,000/-

Total Interest amount accrued till 08-10-2021: Rs. 11,23,599/-

Cost of the Complaint: 20,000/-

Date: 29/10/2021

Place: Mumbai

**THE MAHARASHTRA REAL ESTATE REGULATORY AUTHORITY
MUMBAI.**

1. COMPLAINT NO: CC006000000193147.

Mr Vishal Phalke

Mrs Anita Phalke

... Complainants.

2. COMPLAINT NO: CC006000000193148.

Smita Laxman Survase

Laxman Shamrao Survase

... Complainants.

3. COMPLAINT NO: CC006000000193149.

Ravindra Vishnu Mojar

... Complainant.

4. COMPLAINT NO: CC006000000193150.

SukhadevVirakar

Nanda Virakar

... Complainants.

5. COMPLAINT NO: CC006000000193151.

Manasi Keni

... Complainant.

6. COMPLAINT NO: CC006000000193152.

Mansing Deshmukh

... Complainant.

7. COMPLAINT NO: CC006000000193153.

Rajiv Chand Rajan

Meena Rajiv Rajan

... Complainants.

8. COMPLAINT NO: CC006000000193154.

Shailesh DamodarKeni

... Complainant.



9. COMPLAINT NO: CC006000000193155.

Kannan Krishnan Swami

ManashriDihingia

... Complainants.

10. COMPLAINT NO: CC006000000193156.

Yogesh NanabhauAhire

Nanabhau Fula Ahire

... Complainants.

11. COMPLAINT NO: CC006000000193157.

Neeta Rajdoot Shinde

... Complainant.

12. COMPLAINT NO: CC006000000193158.

Shankar Ananda Phanse

Surekha Shankar Phanse

... Complainants.

Versus

Shadow Builders and Developers Pvt. Ltd.

...Respondent.

MahaRERA Regn: P52000007231.

Coram: Shri B.D. Kapadnis, Member-II.

Appearance:

Complainants: Adv. Avinash Pawar

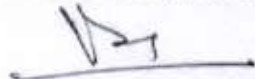
Respondent: Adv. Atish Kasbe a/w. Mr. Sandip Patil

representative of the respondent

FINAL ORDER

1st January, 2021

The complainants have filed these 12 complaints seeking directions from MahaRERA to the respondent to hand over the possession of their respective flats along with occupancy certificate and to pay the interest on their investments for delayed possession of their flats), booked in the respondent's project known as "Apollo 2" bearing MahaRERA Registration



No. P52000007231 at Kharghar, Dist. Raigarh, under section 18 of the Real Estate (Regulation and Development) Act, 2016 (hereinafter referred to as the 'RERA') The complainants at sr. nos. 9, 10 and 11 have also sought refund of the excess amount recovered by the respondent over and above the agreements for sale. The complainants further state that the respondent is not inducting them as the members of the existing society of the said building.

2. These complaints are clubbed together and finally heard today as per the Standard Operating Procedure dated 12th June 2020 issued by MahaRERA for hearing of complaints through Video Conferencing. All the parties have been issued prior intimation of the hearing and they were also informed to submit their written submissions, if any. Accordingly, both the parties appeared and made their respective submissions.

3. The complainants have submitted following information:

Names of the complainants	Flat Numbers	Date of registered agreement for sale	Agreed date of possession in the AFS
Mr Vishal Phalke Mrs Anita Phalke	103	05/12/2016	01/03/2018
Smita Laxman Survase Laxman Shamrao Survase	202	03/12/2017	01/03/2018
Ravindra Vishnu Mojar	303	05/12/2016	01/03/2018
Sukhadev Virakar Nanda Virakar	401	17/06/2017	01/03/2018
Manasi Keni	402	14/12/2016	01/03/2018
Mansing Deshmukh	403	08/06/2017	01/03/2018

Rajiv Chand Rajan Meena Rajiv Rajan	502	08/12/2016	Left blank
Shailesh Damodar Keni	302	05/12/2016	01/03/2018
Kannan Krishnan Swami Manashri Dihingia	503	10/12/2018	01/12/2018
Yogesh Nanabhau Ahire Nanabhau Fula Ahire	602	27/06/2017	01/03/2018
Neeta Rajdoot Shinde	601	08/10/2017	01/03/2018
Shankar Ananda Phanse Surekha Shankar Phanse	603	05/12/2016	01/03/2018

4. The respondent represented through its advocate and representative plead not guilty. The respondent has mainly stated that the building was ready since last 3 years and it applied for occupancy certificate to competent authority viz CIDCO. However, the competent authority delayed it though it complied with all requisite conditions of the permissions granted by it. Since it has already applied for occupancy certificate, the same will be issued within a period of 4 to 5 days and it agrees to hand over the possession of the flats to all complainants within a period of 8 days. The respondent further contends that the said reason of delay was beyond its control and hence it is not liable to pay interest to the complainants for violation of section 18 of the RERA. With regard to the claim of membership raised by the complainants, the respondent has shown its willingness to join them as members of the existing society. Hence it prays for dismissal of these complaints.

5. I have heard the arguments advanced by both the parties and also perused the record. In the present case admittedly, there are registered agreements for sale executed between the complainants allottees and the respondent promoter. The respondent has specifically agreed to handover



possession of the flats booked by the complainants on the dates specified in the table mentioned in para 3 above except for the complainant at sr.no. 7. In case of Mr. Rajiv, complaint at sr.no.7, respondent was bound by section 4(1A) (ii) of MOFA to mention the date of possession in the agreement for sale, as the agreement has been executed in the year 2016 but it failed to do so. Further, the complainant has relied upon the agreements for sale executed with the other allottees /complainants herein, who have purchased the flats on the 6th floor of the said building, wherein the respondent has mentioned the date of possession as 1-03-2018. The complainant's flat is situated on 5th floor of the said building. Therefore, it is taken for granted that the agreed date of possession declared by the respondent namely 01.03.2018 for other allottees will have to be treated as the agreed date of possession for these complainants also. Admittedly, the respondent has failed to handover possession of the flats to the complainants on the agreed dates of possession and till date the project is incomplete as no occupancy certificate has been obtained by the respondent.

6. The respondent has mainly cited the aforesaid reason for the delay caused in the project. I do not find that the said reason cited by the respondent was beyond its control. If the competent authority was delaying the requisite permissions, in that event, the respondent should have taken appropriate steps under the relevant provisions of prevailing law including the Rights to Services Act, 2011 or else should have approached the appropriate forum including the court of law to expedite the requisite permissions for the project. However, no such steps seem to have been taken by the respondent. The respondent being promoter of the project by collecting huge monies from the complainants should not have sat as a silent spectator, instead it should have used its professional skills/knowledge to complete the project in a time bound manner. Delay beyond six months is not permissible even for the



reasons beyond the control of the promoter in view of section 8(b) of MOFA. There is delay of more than six months in these cases. Hence, I do not find any merits in the justification given by the respondent for the alleged delay.

7. I am also of the opinion that due to such act of commissions/omission on the part of the respondent, the complainants cannot be made to suffer, as it would affect the very purpose of RERA since they made slab wise payments to the respondent as per the payment schedule mentioned in the agreements for sale executed by the parties. In view of these facts, I find that the respondent has failed and neglected to handover possession of the flats to the complainants on the agreed dates of possession mentioned in the agreements for sale.

8. Moreover, section 18 of the RERA confers the right on the allottees who wish to continue in the project to seek interest on the money invested by them at the rate prescribed under RERA and the relevant Rules made thereunder i.e., State Bank of India Marginal Cost Lending Rate (MCLR) which is currently 7% p.a. plus 2% for the delayed possession. Therefore, it is the liability of the respondent to pay the interest on the actual amount of consideration paid by the complainants (excluding the amount paid towards stamp duty, registration, government taxes, society charges etc i.e. statutory dues) till handing over the possession of the flats with occupancy certificate for every month of delay.

9. Mr. Kannan Krishnan Swami and Manashri Dihingia- the complainants at Sr. No. 9 of the order contend in their payment statement that the agreed amount of consideration is Rs. 49,90,000/- and Rs. 3,29,500/- were to be paid towards stamp duty and registration charges. Thus, total Rs. 53,19,500/- was payable by them under these heads. The respondent collected Rs. 58,94,500/-

from them and therefore they contend that Rs. 5,75,000/- have been collected in excess. As against this, the complainants have contended in their complaint that the respondent collected Rs. 6,05,400/- in excess. Therefore, these two amounts do not tally.

10. Mr. Yogesh Nanabhau Ahire and Nanabhau Fula Ahire-the complainants at Sr. No. 10 of the order contend that the respondent recovered Rs. 3,00,000/- in excess. In this context, on perusal of the payment statement produced by them, I find that, the total consideration of the flat is Rs. 40,00,000/- whereas the complainants have paid Rs. 43,50,000/-. Thus, Rs. 3,50,000/- are shown to be in excess payment. Whereas in the complaint, the complainants contend that Rs. 3,00,000/- are taken in excess. Therefore, these two figures do not tally. Moreover, it is not mentioned by the complainants whether this amount includes the stamp duty and registration charges or not.

11. Ms. Neeta Shinde contends that Rs. 1,70,000/- have been recovered by the respondent in excess. According to her, the consideration of the flat is Rs. 40,00,000/- whereas the respondent has recovered Rs. 41,70,000/- and therefore, she claims refund of Rs. 1,70,000/- from the respondent. However, she has not produced the payment statement.

12. After giving careful thought to these submissions of the complainants of aforesaid three complaints, I find that, they have not produced the agreements for sale and therefore it is not possible for me to verify whether the complaints were liable to pay the money under other heads separately. It is necessary to direct the parties to reconcile the accounts, instead of passing the order for refund of the amount claimed by the complainants. Considering the facts and circumstances as stated herein above, I proceed to pass following order.



ORDER

- A. The respondent is directed to pay simple interest at the rate of 9% p.a. on the consideration amounts paid before the agreed dates of possession from those dates and on the payment part of consideration paid thereafter from the dates of their payments till handing over the possession of the flats with agreed amenities and with occupancy/completion certificate of possession.
- B. The respondent is also directed to handover possession of the flats to the complainants by obtaining the occupancy certificate at the earliest along with agreed amenities mentioned in the agreements for sale.
- C. The respondent is also directed to join the complainants as the members in the existing society.
- D. The complaints of the complaints at sr.no.9.10.11 of the order and respondent are directed to reconcile their accounts and if the respondent has recovered the excess money than was payable by the complainants, the respondent shall refund it with simple interest at the rate of 9% p.a.
- E. Parties are allowed to adjust their respective claims and pay the balance to whom it is due.
- F. Respondent shall pay Rs.20,000 towards the cost of each complaint to its complainant/s.
- G. Original order if kept in filed by and its photostat copies are kept in rest of the complaints.

Date: 01.01.2021.



(B. D. Kapadnis)
Member-II,
MahaRERA, Mumbai.